

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

June 09, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
102	Liu vs. Tran 25-01487015	1. Demurrer to Second Amended Complaint 2. Case Management Conference Defendant Brittany R. Eichin ("Eichin") demurs to the Second Amended Complaint (SAC) of plaintiff Shu Xia Liu ("Plaintiff") on the ground that the seventh cause of action for aiding and abetting forgery fails to plead sufficient facts. The Court notes that counsel for Eichin failed to meet and confer with opposing counsel in person, via telephone, or via videoconference as required. Counsel is advised that the failure to comply with all applicable rules and statutes in the future may result in a hearing being taken off calendar, where appropriate. In the SAC, Plaintiff alleges that Eichin notarized three documents that contained forged signatures: two August 31, 2023 Grant Deeds upon which Defendant

		Tran forged Plaintiff's name and one May 31, 2024 Grant Deed which contained a signature purporting to be Defendant Jiao's but which Defendant Jiao did not sign actually. Plaintiff alleges that Eichin notarized these documents despite knowing that Plaintiff and Defendant Jiao had not personally appeared before her, contrary to her certification under penalty of perjury. Further, Eichin knew or should have known that the signatures were not that of Plaintiff or Defendant Jiao and that the documents were being used to unlawfully and fraudulently transfer title of the properties. "Liability may [] be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (Saunders v. Superior Court (1994) 27 Cal.App.4th 832, 846.) "California courts have long held that liability for aiding and abetting depends on proof the defendant had actual knowledge of the specific primary wrong the defendant substantially assisted." (Casey v. U.S. Bank Nat. Assn. (2005) 127 Cal.App.4th 1138, 1145.) Eichin argues that Plaintiff's allegation that Eichin falsely certified that Plaintiff personally appeared before her despite knowing that Plaintiff did not appear is shown to be false by the two deeds attached to the SAC, which demonstrate that Plaintiff signed the document and appeared before Eichin. This argument lacks merit. While the Court will accept as true the contents of exhibits attached to the pleading that conflict with the factual allegations and disregard those contradictory allegations, that rule does not apply here. Plaintiff is alleging that Eichin falsely certified under penalty of perjury that Plaintiff appeared before her when the documents were notarized. Eichin cannot
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	point to those same documents and argue that Plaintiff did appear and sign them simply because that is what the documents say, to defeat those allegations. Eichin further argues that Plaintiff does not have standing as a real party in interest to allege that Tran forged Jiao’s signature on the May 23, 2024 Grant Deed and only Jiao can properly assert such a claim as the individual whose signature was allegedly forged. Except as otherwise provided by statute, “every action must be prosecuted in the name of the real party in interest. . . .” (Code Civ. Proc., § 367.) “A person who invokes the judicial process lacks standing if he, or those whom he properly represents, ‘does not have a real interest in the ultimate adjudication because [he] has neither suffered nor is about to suffer any injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented.’ [Citation.]” (Schmier v. Supreme Court (2000) 78 Cal.App.4th 703, 707.) Here, Plaintiff is alleging that title to her property was disrupted by the forging of Defendant Jiao’s signature on the Grant Deed and Eichin’s notarization of the Grant Deed despite knowing that the signature was not Defendant Jiao’s. Because Plaintiff is claiming significant injury caused by the alleged forgery, Plaintiff has standing. Lastly, Eichin argues that Plaintiff has failed to plead that Eichin knew that a tort was being committed or that Eichin intended to give assistance to committing the tort. In Casey, the court considered the issue of whether the knowledge element of an aiding and abetting claim had been sufficiently alleged. The plaintiffs asserted a claim for aiding and abetting breach of fiduciary duty against banks used in a scheme to divert investor funds and alleged that the banks knew of the breaches of fiduciary duty and assisted by allowing the misconduct. The court held that the allegations were insufficient because they failed to establish that the banks had
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actual knowledge of the primary violation in which they purportedly participated. (127 Cal.App.4th at p. 1148.) The court explained that while the banks may have been suspicious about certain account activities, mere suspicion alone does not give rise to tort liability. (Id. at p. 1151.) The court further noted that, on the other hand, had the plaintiffs alleged that the banks knew that corporate funds were being stolen and knowingly assisted in its laundering, those allegations would suffice to state a claim for aiding and abetting. (Ibid.)

In Neilson v. Union Bank of California, N.A. (C.D. Cal. 2003) 290 F.Supp.3d 1101, analyzed by the Casey court, the court held that the complaint adequately alleged that the defendant banks had actual knowledge of the primary violation, a Ponzi scheme that defrauded investors out of millions of dollars. (Id. at p. 1120.) The

Neilson court noted that the complaint alleged that the banks actively participated in the conduct by their utilization of atypical banking procedures to service the accounts, and noted that the necessary knowledge for aiding and abetting could be inferred based on those allegations. (Id. at pp. 1120-1121.)

Here, Plaintiff does not only allege that Eichin knew of the forgeries but also that Eichin furthered the misconduct accomplished through the forgeries by engaging in atypical practices, i.e., by certifying under penalty of perjury that Plaintiff and Defendant Jiao had personally appeared before her despite the fact that they had not. These allegations are sufficient to support an inference of the necessary knowledge against Eichin at the pleading stage.

Eichin requests judicial notice of a police report she filed with the Orange County Sheriff's Department in which she purportedly showed the officer her notary journal entries for August 31, 2023 and the journal entries do not match the names on the grant deeds provided in the SAC. "While [courts] may take judicial

		notice of court records and official acts of state agencies [citation], the truth of matters asserted in such documents is not subject to judicial notice.” (Arce v. Kaiser Foundation Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482.) Therefore, Eichin’s request for judicial notice is DENIED. In light of all the above, Eichin’s demurrer to the SAC is OVERRULED. Eichin is ORDERED to file an answer to the SAC within 20 days. Moving party to give notice.
103	Abinante vs. Collins 25-01457824	1. Demurrer to Second Amended Complaint 2. Motion to Strike Portions Of Second Amended Complaint 3. Case Management Conference Defendants Matthew Collins, Smarttecc, Inc. (“Smarttecc”), Validus DX, LLC (“Validus”), MedLab2020, Inc. (“MedLab2020”) and MVML, Inc. (“MVML” and collectively, “Defendants”) demur to the SAC of plaintiffs Matthew Abinante; Rume Health, LLC; and Rume Medical Group, Inc. (collectively, “Plaintiffs”) and move to strike certain allegations. Defendants Collins, Smarttecc, Validus, and MedLab2020’s Demurrer These defendants’ previous Demurrer to the causes of action for breach of fiduciary duty, declaratory relief, conversion, unjust enrichment, fraudulent concealment, negligence, unfair business practices, accounting, and implied and equitable indemnity was overruled on December 4, 2025. The Court finds these causes of action remain sufficiently pled. Further, to the extent Defendants’ Demurrer raises any new arguments against these causes of action that could have, but were not, raised in their prior Demurrer, the Court disregards